

		complaint was rejected twice. There is thus no first amended complaint on file with the Court. The demurrer is SUSTAINED with 20 days leave to amend. Case management conference is CONTINUED to December 4, 2026, at 9:30 a.m. Defendants shall give notice.
5	Vanbuskirk v. Chedraui USA, Inc.	Before the Court is a motion by defendant Chedraui USA, Inc. dba El Super to maintain the confidentiality of documents bearing numbers CHEDRAUI 0030-0042. For the reasons set forth herein, the motion is GRANTED. The within action arises from a trip and fall incident where plaintiff Rosalba Vanbuskirk alleges that while she was shopping at El Super, an employee placed a restocking cart behind her and that created a tripping hazard which caused her to fall. In the course of discovery, the parties entered into a protective order allowing for designation of confidential material including "Private Employee Information such as disciplinary reports, employment documents, or other records." (ROA 51) Defendant designated documents CHEDRAUI 0030-0042. Plaintiff thereafter objected to the confidentiality designation and defendant filed the instant motion. (In the Opposition, plaintiff withdrew her objections to Nos. 35 and 42.) Defendant submits the declaration of David Godinez, its General Liability Manager, who states: "2. Documents marked in this litigation as CHEDRAUI 0030 – 0041 are maintained by Defendant as part of the employee personnel file of Defendant's former employee, Severiano Mendoza. 3. Documents marked in this litigation as CHEDRAUI 0030 – 0034, and 0036 – 0041 were prepared and maintained by Defendant as part of Severiano Mendoza's disciplinary and personnel record and evaluation." (Godinez Decl. ¶¶2-3) Defendant has met its burden to "establish a legally protected privacy interest, an objectively reasonable expectation of privacy in the given circumstances, and a threatened intrusion that is serious." (Williams v. Superior Court (2017) 3 Cal.5th 531, 552.) "When the right to discovery conflicts with a privileged right, the court is required to carefully balance the right of privacy with the need for discovery." (Harris v. Superior Ct. (1992) 3 Cal. App. 4th 661, 665, citing Valley Bank of Nevada v. Superior Court (1975) 15 Cal.3d 652, 657.) The burden is therefore on the plaintiff to establish a "legitimate and important countervailing interest" in obtaining records. (Williams v. Superior Court (2017) 3 Cal.5th 531, 552) The Court has reviewed the documents and briefs filed under seal, as well as the arguments of the parties. The Court does not find that the documents are directly relevant to plaintiff's claims. To the contrary, the records relate the disciplinary history and records of a non-party former employee. There is nothing in the records that

		relate to the placement of a restocking cart or procedures/policies relating thereto. Further, plaintiff has provided no evidence as to why the confidential designation should be lifted when the protective order allows plaintiff to use the documents at depositions, with experts and at trial. Accordingly, the motion is GRANTED and documents designated CHEDRAUI 0030-0042 shall remain confidential pursuant to the terms of the protective order at ROA 51. Defendant is ordered to give notice.
6	Catanzarite v. City of Newport Beach	Cont.
7	Twining v. Tarvin	Cont. to 8/10.
8	Vivian v. MHCC, Inc.	Before the Court is an unopposed motion for leave to file a cross-complaint filed by defendant Affordable Coast Glass, Inc. (Defendant) As set forth more fully below, the motion is GRANTED. A party may apply to the court for leave to file a compulsory and/or permissive cross-complaint at any time during the course of the action. (Code of Civ. Proc. § 426.50, § 428.50, subd. (c).) A cross-complaint is compulsory if the cause of action against the plaintiff "arises out of the same transaction, occurrence, or series of transactions or occurrences as the cause of action which the plaintiff alleges in the complaint." (Code of Civ. Proc. § 426.10, subd. (c).) In addition, a defendant can cross-complain against a codefendant or third party if the cause of action asserted arises out of the same transaction, occurrence, or series of transactions or occurrences set forth in the complaint. (Code of Civ. Proc. § 428.10, subd. (c).) Here, the proposed cross-complaint contains causes of action arising out of the same series or occurrences as the causes of action set forth in the the complaint. (Declaration of Sean Paden, Ex. A.) The Court finds granting leave to file the cross-complaint is in the interest of justice. Counsel for Defendant shall provide notice of this ruling.
9	Black v. Mercy House Living Center	O/C
10	Objective Standard Institute v. Barney et. al.	Before the Court is a motion by plaintiff Objective Standard Institute to seal portions of its evidentiary objections (ROA 46), the declaration of Annie Vinther Sanz (ROA 52) and the declaration of Jonathan D. Dykstra (ROA 140). For the reasons set forth below, the unopposed motion is GRANTED. Plaintiff's request for judicial notice is GRANTED. (Evid. Code § 452, subd. (d).) The Court finds an overriding interest exists that overcomes the right of public access to the records at issue, as the materials to be